

CHAPTER 57

Baking Industry (Hours of Work) Act, 1954

ARRANGEMENT OF SECTIONS

Section

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An Act to restrict night work in the baking industry,
and for purposes connected therewith.

[30th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Hours of work
at bakeries
other than
night-bakeries.

1.—(1) Except at an establishment with respect to which a notice under subsection (1) of the next following section is for the time being operative, and subject to the other provisions of this Act, a person shall not be employed as a bakery worker between the hours of ten o'clock in the evening and five o'clock in the morning:

Provided that a person may be so employed on dough-making or oven-firing at any time in the morning not earlier than three o'clock.

(2) In this Act, the expression "bakery worker" means a person employed in any undertaking carried on by way of trade or for the purposes of gain under a contract of service or of apprenticeship in the manufacture of bread or flour confectionery or on work incidental to such manufacture, including the slicing, wrapping, loading or other preparation for sale or distribution of bread or flour confectionery, but does not include—

(a) any person employed wholly on one or more of the following classes of work, that is to say, distribution, work (other than such preparation as aforesaid) incidental to distribution, cleaning, the maintenance, repair or servicing of plant, buildings or equipment, and office, administrative or welfare work; or

- (b) any person employed partly on loading who is mainly and, apart from his employment on loading, wholly employed on one or more of the classes of work specified in the foregoing paragraph; or
- (c) a foreman, that is to say, a worker with four or more bakery workers under him; or
- (d) any person employed in the kitchen of an hotel, boarding house, restaurant, cafe or other similar establishment so far as he is so employed in, or on work incidental to, the manufacture of flour confectionery for consumption at that establishment;

and for the purposes of this definition the expression "flour confectionery" includes oat-cakes and shortbread but not biscuits.

(3) For the purposes of the last foregoing subsection, where any undertaking such as is mentioned therein is carried on by a company, a director of the company who holds as beneficial owner shares therein amounting in nominal value to more than one-quarter of the issued share capital of the company shall not, but any other director of the company shall, be deemed to be employed by the company under a contract of service.

2.—(1) An employer may at any time give notice in writing to the Minister that he intends to use any establishment as a night-bakery, and any person employed as a bakery worker at that establishment while that notice remains operative (in this Act referred to as a "night-bakery worker") may be so employed at any time of the day or night, subject, however, to compliance with the conditions set out in the next following subsection.

Hours of work
at night-
bakeries.

(2) The conditions referred to in the foregoing subsection are that, subject to the provisions of this Act—

- (a) a person shall not be employed as a night-bakery worker between the hours of six o'clock in the evening and six o'clock in the morning for more than twenty-six working weeks in any one year;
- (b) except in accordance with such a consent as is mentioned in subsection (4) of this section, a person shall not be employed as a night-bakery worker between the hours aforesaid for more than four consecutive working weeks at any one time; and
- (c) except in accordance with such a consent as aforesaid, a person shall not at any time in any one year have been employed as a night-bakery worker between the hours aforesaid for an aggregate number of working weeks exceeding by more than four the aggregate number of working weeks in that year for which he has been in employment as a night-bakery worker without being employed between the hours aforesaid.

(3) For the purposes of the last foregoing subsection—

- (a) all employment as a night-bakery worker by the same employer in any year shall be taken into account, whether or not the employment is continuous or is at the same establishment, but no account shall be taken of any period of employment by another employer;
- (b) a person shall be deemed to have been employed as a night-bakery worker between the hours aforesaid for the whole of any working week in which he has at any time been employed as a night-bakery worker between those hours;
- (c) where a working week falls partly in one year and partly in another year—
 - (i) if the greater part of that week falls in one of those years, the whole week shall be deemed to fall in that year;
 - (ii) if an equal part of that week falls in each of those years, the whole week shall be deemed to fall in the later of those years.

(4) If in the case of any establishment, by reason of the seasonal requirements of a holiday resort or other special circumstances, it appears to the Minister reasonable and proper so to do, he may grant his consent in writing for the employment at that establishment, subject to such conditions, if any, as may be specified in the consent, of persons as night-bakery workers otherwise than in accordance with either or both of the conditions specified in paragraphs (b) and (c) of subsection (2) of this section, and any such consent may be revoked by the Minister at any time.

(5) Any notice under subsection (1) of this section shall be in a form approved by the Minister and shall include the following particulars—

- (a) the address of the establishment intended to be used as a night-bakery;
- (b) the date on which the establishment is to commence to be used as a night-bakery; and
- (c) the day of the week and the time on that day at which the period of seven consecutive days which is to be treated as the working week at that establishment for the purposes of this section is to begin and end.

(6) While any such notice remains operative, the working week aforesaid shall not be changed except on and from one of the first seven days in January in any year and after at least one month's notice has been given in writing by the employer to the Minister.

(7) An employer may at any time give notice in writing to the Minister that, as from a date specified in the notice, he intends to discontinue the use of any establishment so specified as a night-bakery, and where such a notice is given the notice under subsection (1) of this section with respect to that establishment shall cease to be operative as from the date so specified.

3.—(1) Subject to the proviso to subsection (4) of this section, Special the provisions of this section shall have effect notwithstanding exceptions. anything in section one of this Act, and any work on which a night-bakery worker is employed by virtue of this section shall be left out of account for the purposes of section two of this Act.

(2) If it is necessary in order to meet the requirements of the public immediately before or immediately after Sunday or the Jewish Sabbath, a bakery worker may be employed during one night work period in each week to be selected by the employer:

Provided that, in the case of any one establishment, not more than two night work periods in the week shall be selected for the purposes of this subsection, which shall be on the same days in every week in any one year unless, on an application made to him by the employer for the purpose, the Minister is satisfied that it is reasonable to change those days and grants his permission in writing.

(3) Without prejudice to the last foregoing subsection, if it is necessary in order to meet the increased requirements of the public before an ordinary or special public holiday, a bakery worker may be employed during any one night work period, to be selected by the employer, in the period of seven days immediately preceding that holiday:

Provided that, in the case of any one establishment and any one such holiday, not more than two night work periods in the said period of seven days shall be selected for the purposes of this subsection.

(4) Without prejudice to the two last foregoing subsections, a bakery worker may be employed during any night work period when it is necessary in order to avoid serious interference with the ordinary work of an establishment by reason of accident, illness, break-down of machinery or plant, or other unforeseen emergency:

Provided that this subsection shall not be a defence to any proceedings under section seven of this Act with respect to any period of employment by reason of such an emergency, and work on which a night-bakery worker is employed for any period by reason of such an emergency shall not be left out of account for the purposes of section two of this Act—

(a) unless the employer has given notice in writing to the Minister of the existence of the emergency; or

(b) if that notice was given more than forty-eight hours after the commencement of that period.

(5) If an employer gives notice in writing to the Minister in such form as the Minister may approve that he desires this subsection to apply with respect to any establishment of his specified in the notice, then, unless and until the employer sends to the Minister in writing a cancellation of that notice, subsection (3) of this section shall have effect with respect to that

establishment as if for the references therein to an ordinary public holiday there were substituted references to a day on which the establishment in question is to be closed for the purposes of celebrating any of the following Jewish Holy Days, that is to say, Pentecost, the Jewish New Year, the Day of Atonement and the Feast of Tabernacles:

Provided that, except with the consent in writing of the Minister, a notice or cancellation under this subsection shall not take effect until the first day of January next following the giving thereof.

(6) In this section, the following expressions have the following meanings respectively in relation to any establishment, that is to say—

“ordinary public holiday” means a day which is a bank holiday under the Bank Holidays Act, 1871, in that part of Great Britain in which the establishment is situated, not being a day (other than the twenty-seventh day of December) appointed as a bank holiday by virtue of section four of that Act, and, in relation to an establishment in England or Wales, includes Christmas Day and Good Friday;

“special public holiday” means any other day which, in the said part of Great Britain, is a bank holiday under the said Act, a public holiday or a day appointed for public thanksgiving or mourning.

Power to
sub-divide
establishments.

4.—(1) If, on an application made to him at any time for the purpose by any employer, the Minister is satisfied with respect to any establishment that, by reason of the fact that different bakery products are being manufactured, or different processes are being carried on, either in different parts of that establishment or by different sets of workers, it is reasonable so to do, the Minister may at any time grant, subject to such conditions, if any, as he may think fit, a certificate that for the purposes of this Act any specified parts of that establishment are to be treated as separate establishments or any specified activities carried on at that establishment are to be treated as carried on at separate establishments; and any reference in this Act to an establishment shall be construed as including a reference to—

(a) any part of an establishment; and

(b) an establishment in so far as it is used for any particular activities,

with respect to which such a certificate is for the time being in force.

(2) The Minister may at any time revoke any certificate granted under this section.

5.—(1) An employer of any bakery workers shall at all times cause to be displayed at the establishment at which those workers are employed and in a position where they may conveniently be read by those workers—

- (a) such abstract or statement of the effect of this Act as may be issued for that purpose by the Minister;
- (b) a notice specifying the night work period or periods, if any, selected in the case of that establishment for the purposes of subsection (2) of section three of this Act;
- (c) where the establishment is used as a night-bakery, a copy of the notice served with respect to that establishment under subsection (1) of section two of this Act and a copy of any consent granted by the Minister under subsection (4) of that section;
- (d) where a certificate under section four of this Act is in force with respect to the establishment, a copy of that certificate;
- (e) where a notice given under subsection (5) of section three of this Act has effect for the time being with respect to that establishment, a copy of that notice.

(2) The employer of any night-bakery workers shall keep such records in respect of those workers as are necessary to show whether or not the provisions of this Act and any conditions imposed by the Minister thereunder are being complied with, showing in particular the times at which each of those workers started and finished work on any day; and the employer shall preserve any such records until not less than twelve months after the expiration of the year to which they relate.

(3) Where, for the purposes of subsection (4) of section three of this Act, an employer has given notice to the Minister of the existence of an emergency, the employer shall, if so required by the Minister, furnish such further information concerning the nature of the emergency and the workers who have been or are to be employed by reason thereof as the Minister may direct.

(4) Any notice, application or information required by this Act to be given or made to the Minister shall be so given or made in such manner and at such place as the Minister may direct.

6.—(1) Every officer furnished by the Minister under subsection (2) of section seventeen of the Wages Councils Act, 1945, with a certificate of his appointment or authority to act for the purposes of Part II of that Act shall also be deemed to be appointed or authorised to act for the purposes of this Act, and when acting under this Act shall, if so required by any person affected, produce that certificate to him.

(2) An officer acting for the purposes of this Act shall have power for the performance of his duties—

- (a) to require the production of any records required to be kept under subsection (2) of section five of this Act and to inspect and examine any such records and copy any material part thereof;
- (b) to enter any premises or place at any time when, or when there is reasonable cause to believe that, any persons are being employed as bakery workers thereat;
- (c) to examine, either alone or in the presence of any other person, as he thinks fit, with respect to any matters under this Act, any person whom there is reasonable cause to believe to be or to have been a bakery worker, or the employer of any such person, or a servant or agent of the employer employed in the employer's business, and to require every such person to be so examined and to sign a declaration of the truth of the matters in respect of which he is so examined;
- (d) where the employer of any bakery workers is a company, to inspect the register of members of that company without charge at any time when the register is open for inspection by members of the company:

Provided that no person shall be required under paragraph (c) of this subsection to give any information tending to criminate himself.

(3) In England or Wales, an officer acting for the purposes of this Act may institute proceedings for any offence under this Act and may, although not of counsel or a solicitor, conduct any such proceedings.

Offences.

7.—(1) If any person is employed as a bakery worker during a night work period otherwise than as permitted by or under this Act, the employer shall be guilty of an offence and be liable on summary conviction to a fine not exceeding twenty pounds; and for the purposes of this subsection the employer shall be deemed to have committed a separate offence in respect of each such period during which a worker is so employed.

(2) If any employer fails to comply with any requirement of subsection (1) or (2) of section five of this Act which is applicable in his case he shall be guilty of an offence and be liable on summary conviction to a fine not exceeding twenty pounds.

(3) If any person makes or causes to be made or knowingly allows to be made any entry in the records required by subsection (2) of section five of this Act to be kept by employers which he knows to be false in a material particular, or for purposes connected with this Act produces or furnishes, or causes or knowingly allows to be produced or furnished, any records which he knows to be false in a material particular, he shall be

liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both.

(4) Where, under subsection (3) of section five of this Act, the Minister has required any employer to furnish him with any information, then—

(a) if the employer fails to comply with that requirement, he shall be guilty of an offence and be liable on summary conviction to a fine not exceeding twenty pounds;

(b) if the employer furnishes, or causes or knowingly allows to be furnished, any information which is to his knowledge false in any material particular, he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or to both.

(5) Any person who obstructs an officer acting for the purposes of this Act in the exercise of any power conferred by section six of this Act, or fails to comply with any requirement of such an officer made in the exercise of any such power, shall be liable on summary conviction to a fine not exceeding twenty pounds.

8.—(1) Where, by reason of an agreement in force at the commencement of this Act between the lessor and the lessee of premises the whole or any part of which is used for the manufacture of bread or flour confectionery or for work incidental to such manufacture, the lessee is prevented from carrying out structural or other alterations in the premises, the lessee may apply, in accordance with county court rules, to the county court and, if the court is satisfied that having regard to the restrictions on hours of work imposed by this Act the lessee ought reasonably to be allowed to carry out any such structural or other alterations, the court may make such order setting aside or modifying the terms of the agreement as the court considers just and equitable in the circumstances of the case. Power to modify agreements.

(2) In the application of the foregoing subsection to Scotland, for the references to the county court and to county court rules there shall respectively be substituted references to the sheriff and to act of sederunt.

9.—(1) If at any time the Minister is satisfied that there is in force an agreement to which one or more organisations representing employers in the baking industry and one or more trade unions representing bakery workers are parties and that, having regard to the terms of that agreement, this Act should not apply in relation to bakery workers to whom the agreement relates, he may by order provide that the foregoing provisions of this Act shall not apply in relation to bakery workers to whom the agreement relates employed by any employer to whom the agreement applies. Minister's power to make exemption orders.

(2) When any such order is made with respect to any such agreement, any organisation representing employers which is a party to the agreement shall cause the Minister to be furnished in such manner and at such place as he may direct with a list of the employers who are members of that organisation and to whom the agreement applies, and so long as the order remains in force—

- (a) any such organisation shall cause the Minister to be furnished as aforesaid with information of any changes which should from time to time be made in the list aforesaid; and
- (b) the parties to the agreement shall cause the Minister to be furnished as aforesaid with particulars of any amendment which may from time to time be made in the agreement and with notice of any withdrawal from or revocation of the agreement.

(3) So long as an order made under this section remains in force and applies in his case, an employer to whom any such agreement as aforesaid for the time being applies shall cause to be displayed at any establishment at which bakery workers to whom the agreement relates are employed by him, and in a position where it may conveniently be read by those workers, a notice in such form as the Minister may approve for the purpose of notifying those workers of the application of that order; and if in the case of any such establishment such a notice is not displayed the employer shall be guilty of an offence and be liable on summary conviction to a fine not exceeding twenty pounds.

(4) Any order made under this section—

- (a) shall be made by statutory instrument; and
- (b) may be varied or revoked by a subsequent order made in the like manner.

Expenses.

10. Any expenses incurred by the Minister in carrying this Act into effect shall be defrayed out of moneys provided by Parliament.

**Interpretation
and
application.**

11.—(1) In this Act, the following expressions have the following meanings respectively, that is to say—

“bakery worker” has the meaning assigned by subsections (2) and (3) of section one of this Act;

“the Minister” means the Minister of Labour and National Service;

“night work period” means, in the case of a night-bakery worker, the period from six o'clock in the evening on one day to six o'clock in the morning on the next following day and, in any other case, the period from ten o'clock in the evening on one day to five o'clock in the morning on the next following day;

“night-bakery” means an establishment at which the hours of work of bakery workers are regulated by the provisions of section two of this Act;

“night-bakery worker” means a person employed as a bakery worker at a night-bakery;

“year” means a calendar year commencing with the first day of January;

and “company”, “director”, “share” and “share capital” have the same meanings as for the purposes of the Companies Act, 1948.

(2) Without prejudice to the provisions of any other enactment, the provisions of this Act relating to the hours of work of bakery workers shall not apply to the hours of work of any woman or young person within the meaning of the Factories Act, 1937, employed as a bakery worker at a factory within the meaning of that Act.

(3) Nothing in this Act shall apply in relation to the employment of any person in any description of vessel used in navigation.

12.—(1) The restrictions relating to work on Sundays contained in the Sunday Observance Act, 1677, shall cease to have effect in relation to the employment of bakery workers. Repeals and savings.

(2) The Baking Industry (Hours of Work) Act, 1938, is hereby repealed.

(3) Save as provided in the foregoing provisions of this section, the provisions of this Act shall be in addition to and not in substitution for or diminution of the provisions of any other Act.

13.—(1) This Act may be cited as the Baking Industry (Hours of Work) Act, 1954. Short title, commencement, extent, etc.

(2) This Act shall come into operation—

(a) if the Minister by order so provides, on the first day of January, nineteen hundred and fifty-seven; or

(b) failing such an order by the Minister, on the first day of January, nineteen hundred and fifty-eight.

(3) The power to make an order conferred by the last foregoing subsection shall be exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) Without prejudice to section thirty-seven of the Interpretation Act, 1889 (which relates to the exercise of statutory powers between the passing and the commencement of an Act), a notice or consent under section two of this Act, a notice under subsection (5) of section three of this Act, a certificate under section four of this Act or an order under section nine of this Act may be served, granted or made before the date when this Act comes into operation but shall not have effect until that date.

(5) This Act shall not extend to Northern Ireland.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Sunday Observance Act, 1677	29 Car. 2. c. 7.
Bank Holidays Act, 1871	34 & 35 Vict. c. 17.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Factories Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 67.
Baking Industry (Hours of Work) Act, 1938	1 & 2 Geo. 6. c. 41.
Wages Councils Act, 1945	8 & 9 Geo. 6. c. 17.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.

CHAPTER 58

An Act to validate under the law of England and Wales, and restrict to charitable objects, certain instruments taking effect before the sixteenth day of December, nineteen hundred and fifty-two, and providing for property to be held or applied for objects partly but not exclusively charitable, and to enable corresponding provision to be made by the Parliament of Northern Ireland.
[30th July, 1954]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Validation and
modification of
imperfect trust
instruments.

1.—(1) In this Act, "imperfect trust provision" means any provision declaring the objects for which property is to be held or applied, and so describing those objects that, consistently with the terms of the provision, the property could be used exclusively for charitable purposes, but could nevertheless be used for purposes which are not charitable.

(2) Subject to the following provisions of this Act, any imperfect trust provision contained in an instrument taking effect before the sixteenth day of December, nineteen hundred and fifty-two, shall have, and be deemed to have had, effect in relation to any disposition or covenant to which this Act applies—

- (a) as respects the period before the commencement of this Act, as if the whole of the declared objects were charitable; and
- (b) as respects the period after that commencement as if the provision had required the property to be held or applied for the declared objects in so far only as they authorise use for charitable purposes.